

The Claremont City Council held a meeting on Wednesday, January 26, 2022, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Girard at 6:30 p.m.

Members of the Council present:

Ward II Councilor James Contois
Ward I Councilor Andrew O'Hearne
Ward III Councilor Jonathan Stone
Assistant Mayor Debora Matteau
At-Large Councilor Nicholas Koloski
At-Large Councilor William Limoges
At-Large Councilor Lucas Beliveau
At-Large Councilor Matthew Mooshian

Also present:

John MacLean, Interim City Manager
Lisa Richmond, Finance Director

AGENDA CHANGES

Mayor Girard asked to move Sunsetting Claremont Energy Advisory Commission and Electric Aggregation Committee from New Business to Old Business, but he would like to leave it at the end of the meeting as he expects people to come in to speak to this. Council agreed.

REPORT OF THE SECRETARY

A motion was made by Assistant Mayor Matteau and seconded by Councilor Stone to accept the minutes of the January 5, 2022, City Council meeting.

Councilor O'Hearne thought it should say Mayor-Elect Girard, instead of Mayor Girard, called the meeting to order. Councilors agreed to leave it as is.

Roll call vote:

Contois - yes
O'Hearne - no
Stone - yes
Matteau - yes
Koloski - yes
Limoges - yes
Beliveau - yes

Mooshian - yes
Girard - yes
Motion carried 8-1.

A motion was made by Assistant Mayor Matteau to waive the Council Rule which requires every vote be done by roll call and to discuss it at a future meeting to change the Rule. There was no second; the motion failed.

A motion was made by Councilor O’Hearne and seconded by Councilor Stone to accept the minutes of the January 12, 2022, City Council meeting.

Roll call vote:
Contois - yes
O’Hearne - yes
Stone - yes
Matteau - yes
Koloski - yes
Limoges - yes
Beliveau - yes
Mooshian - yes
Girard - yes
Motion carried 9-0.

MAYOR’S NOTES

- Senator Shaheen was at Valley Regional Hospital and that there was a nice turnout to greet her.
- Claremont School Board elections are coming up and there is still time to apply for open seats.

CITY MANAGER’S REPORT

- Hoped all the Councilors were enjoying the new chairs. He sent the chair specs to Councilor O’Hearne and Councilor O’Hearne gave his input.
- Continuing the theme “We Are All on the Same Team.” The more we work together/cooperatively, the better we are. He would like to call it “Claremont Rising.” Claremont’s future is important.
- It was brought to the City’s attention that the Sullivan smokestack is rapidly deteriorating (bricks are falling), creating a dangerous situation. Public Works Director and staff have put up two levels of fencing and signage to secure the area.
- Snow operations have been an issue with the community. We are doing a good job with snow operations. The last snowfall was a “perfect storm” of rain, snow, and slush. We are down some equipment and staff. He complimented the Public Works crew for the work they are doing.

- Brian Rapp has been promoted to Captain in the Fire Department.
- Ted Wadleigh has been promoted to Assistant Public Works Director.
- City Hall – there are continuing concerns about the deterioration of the roof.

Mark Brislin, Parks and Recreation Director, gave a brief update on the City Hall Complex roofs, saying they have outlived their life expectancy by 15 years and they need immediate attention. The main issues are water damage caused by leaking and cold air entering the building. Immediate attention is needed for Roof C, which is the roof over the atrium. The membrane has shrunk and is pulling away from the roof edge, letting outside air into the building. Bill Willette, Maintenance Supervisor, put in some insulation to stop the cold air, but it will not stop the leaking and water damage. Melanson, roofing company, suggested some quick fixes, but they won't last. There are five roofs on City Hall and they all need attention.

Mr. Willette said it is unknown how long the repairs will last. The membrane on the roof is plastic; it is old and shrinking. The quick fix will probably crack the membrane and they will glue some rubber over the crack, but it is unknown how long it will last.

Mr. MacLean said the repairs will not last a long time, but does get us through the winter into better weather. This will be discussed as part of the budget, and some recommendations may include a large project, possibly to be phased, possibly be done through a bond issue. A study will be needed to help us understand what is needed. Tonight, is to let everyone know that we have this issue which affects City Hall, the atrium, and the Court. It is important that it be fixed. The Purchasing Policy allows the City to use the state bid list, and Melanson is on that list, so we can use them without going out for competitive bid. We are looking at \$10,000 and insulation in the boiler room will be an additional \$5,000.

Mr. Willette said most the boiler room is insulated, but there is a piece that is not, and the result is that the boilers are not working efficiently.

Mr. MacLean said there is \$15,000 in the Maintenance budget, but this action will deplete that budget and the City may have to come back to the Council to ask for additional funding.

Councilor Koloski noted that in the CIP (Capital Improvements Plan) there are seven items under City Hall and they all relate to the roof. Mr. MacLean said there are a number of things that will be looked at, including elevator issues, and that will come back to the Council through the budget process.

Mr. MacLean said he met with Barbara Shepard regarding Paddy Hollow Road (Class VI road). He expects to meet with her again and after that will bring a report back to the Council. On the February 9th meeting agenda, there will be a Pleasant Street Project update. In addition, there will be a financial "roll up" with respect to the status of the budget, use of fund balance, etc. He anticipates having a community development update.

Mr. MacLean said that Marta Smith, Children's Librarian, is retiring and there will be an Open House at the Library tomorrow, 12-6 p.m. This is open to all including the public.

CITIZEN'S FORUM

No one spoke.

OLD BUSINESS

Legislative Update

Mayor Girard said that HB412 funding public water system projects, was passed by the House and moved to the Senate; he'll watch this closely. Regarding SB334 vacant building registry, former City Manager Ed Morris was working on this with Senator Prentiss. Mayor Girard said that he and City Manager MacLean sent letters of support to Senator Prentiss. If anyone wants to monitor the status of any bills, they can do so at the NHMA (NH Municipal Association) website.

City Manager Recruitment Update

Mayor Girard said that MRI (Municipal Resources Inc.) was able to interview eight of the nine Councilors to determine what they would be looking for in a new City Manager. The recruitment profile has been completed and is posted on MRI's website. The email address for the confidential community input is claremontcmsearch@mrigov.com. The deadline to apply is February 28th. At the beginning of March, Councilors will receive a report on the number of applications received.

Mayor Girard said that at the January 12th Council meeting, there was a discussion about possibly amending the City Charter. There are two options: holding a special election, or through a City ballot during the Primary election on September 13th. Mr. MacLean said the Assistant City Manager, Mark Chase, is working on this with the City Clerk's office.

Councilor Stone said that the possible Charter amendment should be placed on an agenda sooner rather than later.

NEW BUSINESS

Charlestown Road Safety Audit

Nancy Merrill, Planning and Development Director, said this audit was applied for in 2019. She introduced Michael Dugas, P.E., Highway Safety Engineer with NH Department of Transportation.

Mr. Dugas showed a PowerPoint presentation, Claremont Road Safety Audit, NH 11/Charlestown Road.

- Agenda
 - What is a road safety audit (RSA)
 - RSA findings
 - Existing conditions
 - Safety concerns
 - Improvement concepts
 - Next steps
- RSA Definition – a formal safety performance examination of a location by an independent team.
 - Worked with Planning & Development, Public Works, Police, and Fire
- RSA Candidate Evaluation
 - Requirement of applicants
 - Road Safety Audit locations must have a fatal (K) or severe injury (A) crash history
 - Supporting crashes need to be located at and related to the location of interest
 - Crashes should be correctable and should show a pattern indicative of an infrastructure-related problem rather than a single isolated incident
- Claremont RSA Location - south of Drapers Corner
 - Important to note that the City maintains this portion of the road
- Claremont RSA – Existing Conditions
 - Traffic volume over 11,000 per day
 - Speed limit 30 mph, but then rises to 50 mph
 - Highway straight & flat
 - Crash records from Police Department
 - Within 2 miles, 241 crashes over 12 years
 - Within half a mile (Lane Ridge Road to Sunset Street), 17 injury crashes in 12 years
- Claremont RSA – Safety Concerns
 - High speeds (esp. northbound)
 - Lack of access control
 - Lack of pedestrian facilities
- Low-Cost/Immediate Improvements
 - Stripe for 11' lanes and 5' shoulders – accommodate bikes and calm traffic
 - Improve signs – stop intersection warning signs
 - Improve lighting – install LEDs
 - Remove sight obstructions – landscaping, advertising
 - Implementation: via city routine maintenance
- Moderate-Cost/Medium-Term Improvements
 - Access management improvements
 - Consolidate and define driveways
 - Physical separation between parking and highway

- Usually pursued when properties are developed or redeveloped
 - Challenges: cost, direct impacts upon parking
 - Implementation: city planning and zoning processes
- Higher Cost/Long-Term Improvements
 - Widen highway for two-way left turn lane
 - Gateway treatment (island, signs, markings) to reduce northbound speed
 - Construct sidewalks
 - Challenges: cost, property impacts
 - Implementation: CMAQ/TAP with possible HSIP participation
- RSA Recommendations
 - City pursue low-cost measures immediately via their M&O
 - City consider access management via planning and zoning processes
 - City work with UVLSRPC (Upper Valley Lake Sunapee Regional Planning Commission)

Ms. Merrill said she believes it is noted in the CIP that the UVLSRPC is doing a sidewalk assessment right now. The City is always looking for funding, maybe a transportation alternative grant. She said she hoped the study would do the whole two miles. She is deeply concerned with the intersection at Grissom Lane and Charlestown Road. Vehicles are travelling very fast and it is hard to take a left from Grissom Lane. The City has applied twice for federal grants (including sidewalks), but have not been successful. But, it is in the CIP and the City is watching for federal grants. The UVLSRPC recommended not doing the whole two miles, and that we may have more success doing smaller pieces. Mayor Girard said the new CIP should be out soon.

Resolution 2022-15 Proceeds from First Night Button Sales – Public Hearing

WHEREAS on December 31, 2021, the Claremont Parks & Recreation Department (the "Department"), in conjunction with the Claremont-Sugar River Rotary Club (the "Rotary Club"), co-sponsored First Night activities (the "Event") as a community celebration of the New Year; and

WHEREAS the Department collected \$269.00 from sale of First Night buttons, which was part of the Rotary Club's fundraising activities; and

WHEREAS, the Department would like to now distribute these funds to the Rotary Club;

NOW THEREFORE, BE IT RESOLVED that the City Council hereby authorizes the City Manager or his designees to undertake all actions and execute all documents as may be required to withdraw the total amount of \$269.00 from the Parks & Recreation Revenue Account and to distribute the sum of \$269.00 to the Rotary Club; and

BE IT FURTHER RESOLVED that the City Manager or his designees are hereby authorized to execute all documents and undertake all actions as may be required to implement this resolution. *(2/3 Vote Required)*

Mr. Brislin thanked Claremont-Sugar River Rotary for spearheading the First Night activities. One fundraising activity for the Rotary is that they sell First Night buttons. The buttons are sold at the Claremont Savings Bank Community Center (CSBCC) and now he'd like to give those funds to the Rotary.

A motion was made by Councilor Contois and seconded by Assistant Mayor Matteau to adopt Resolution 2022-15 Proceeds from First Night Button Sales.

Councilor Contois read the resolution into the record.

Mayor Girard opened the public hearing. No one spoke. He closed it.

Roll call vote:

Contois - yes

O'Hearne - yes

Stone - yes

Matteau - yes

Koloski - yes

Limoges - yes

Beliveau - yes

Mooshian - yes

Girard - yes

Motion carried 9-0.

Accept \$8,000 from McGee Toyota for July 4th Fireworks Display

Mr. Brislin said the City is very fortunate to have support from McGee Toyota as the lead sponsor for the July 4th Fireworks in the form of a donation of \$8,000.

Lane Lantas, McGee Toyota General Manager, said they are happy to put on the fireworks for the City.

A motion was made by Assistant Mayor Matteau and seconded by Councilor Stone that the Claremont City Council hereby accepts with sincere appreciation the donation of \$8,000 from McGee Toyota for the purchase of a fireworks for the July 4th Fireworks Display; and authorizes the City Manager, or his designees, to undertake all such actions as may be required to implement this motion.

Roll call vote:

Contois - yes

O'Hearne - yes
Stone - yes
Matteau - yes
Koloski - yes
Limoges - yes
Beliveau - yes
Mooshian - yes
Girard - yes
Motion carried 9-0.

Accept \$10,000 from John Ring for Timing System at CSBCC

Mr. Brislin said that John Ring is a strong supporter of the CSBCC, in the past he donated starting blocks for the pool and a scoreboard. The current timing system is 17-18 years old and some of the touch pads are failing. He thanked Mr. Ring for his support.

A motion was made by Councilor Beliveau and seconded by Assistant Mayor Matteau that the Claremont City Council hereby accepts with sincere appreciation the donation of \$10,000 from John Ring for the purchase of a timing system for the Claremont Savings Bank Community Center pool and authorizes the City Manager, or his designees, to undertake all such actions as may be required to implement this motion.

Roll call vote:
Contois - yes
O'Hearne - yes
Stone - yes
Matteau - yes
Koloski - yes
Limoges - yes
Beliveau - yes
Mooshian - yes
Girard - yes
Motion carried 9-0.

Resolution 2022-16 Airport Grant for Obstruction Removal (Construction) – Public Hearing

WHEREAS the City is undertaking the construction portion of the Airport Obstruction Removal Runway Approach Project (the "Project") at the Claremont Municipal Airport; and

WHEREAS the City of Claremont, NH, has been approved for funding the Airport Obstruction Removal Runway Approach Project. SBG-02-19-2021 Grant for said project in the amount of \$259,792.50 and;

WHEREAS the City would like to now accept and expend said funds;

NOW THEREFORE BE IT RESOLVED to raise, appropriate and expend the sum of \$259,792.50 with \$233,813.25 (90%) to come from the Federal Aviation Administration, \$12,989.63 (5%) to come from the NH Department of Transportation Bureau of Aeronautics, and the remaining \$12,989.63 (5%) as our local match to be taken from the Airport Special Revenue Fund (to have no impact on the tax rate); and

BE IT FURTHER RESOLVED that the City Manager or his designees are hereby authorized to execute all documents and undertake all actions as may be required to implement this resolution. *(2/3 Vote Required)*

Mr. MacLean said this is the construction portion of the grant. This deals with aviation easements and removal of obstructions at the airport.

Fire Chief and Airport Manager Bryan Burr said that 1,055 feet of runway cannot be used because of a safety issue. To gain back the 1,055 feet, trees that are impinging on the protected airspace at the airport have to be removed. He asked the Council to approve this resolution.

A motion was made by Councilor Contois and seconded by Councilor O'Hearne to adopt Resolution 2022-16 Airport Grant for Obstruction Removal (Construction).

Councilor Contois read the resolution into the record.

Mayor Girard opened the public hearing. No one spoke. He closed it.

Roll call vote:

Contois - yes

O'Hearne - yes

Stone - yes

Matteau - yes

Koloski - yes

Limoges - yes

Beliveau - yes

Mooshian - yes

Girard - yes

Motion carried 9-0.

Resolution 2022-17 Overspend Airport Budget – Public Hearing

BE IT RESOLVED by the Council of the City of Claremont, New Hampshire, after public hearing duly noticed, to over-expend the 2020 Airport budget, Account #01-472-360-0000, as approved, by up to \$10,000 for the purchase of aviation fuel, such expense to be offset by increased revenue from the sale of aviation fuel, with no impact on the tax rate.

Such department over-expenditure shall not exceed the total bottom line appropriated for 2022.

BE IT FURTHER RESOLVED that the City Manager or his designees are hereby authorized to execute all documents and undertake all actions as may be required to implement this resolution. *(2/3 Vote Required)*

Chief Burr said they have been successful at selling aviation fuel at the Airport. He's asking for \$10,000 in order to purchase more aviation fuel.

A motion was made by Councilor Koloski and seconded by Councilor O'Hearne to adopt Resolution 2022-17 Overspend Airport Budget.

Councilor Koloski read the resolution into the record.

Mayor Girard opened the public hearing. No one spoke. He closed it.

Roll call vote:

Contois - yes

O'Hearne - yes

Stone - yes

Matteau - yes

Koloski - yes

Limoges - yes

Beliveau - yes

Mooshian - yes

Girard - yes

Motion carried 9-0.

OLD BUSINESS

Sunsetting Claremont Energy Advisory Commission and Electric Aggregation Committee

A motion was made by Councilor Stone and seconded by Councilor O'Hearne to take the Claremont Energy Advisory Commission (EAC) discussion off the table.

Voice vote: motion carried 9-0.

A motion was made by Councilor O'Hearne and seconded by Councilor Stone to take the Electric Aggregation Committee discussion off the table.

Voice vote: motion carried 9-0.

Mayor Girard said this discussion was started at the January 12th Council meeting by Councilor Koloski. Councilor Koloski apologized if he came across as offensive to these two, or any, committee(s) in the City during the last Council meeting. He said the real issue is defining the actual role of the committee. He suggested asking the Policy Committee to clarify the expectations for the committee.

Derek Ferland, Ward 3 resident and member of the EAC when the committee was formed said that most of the time that he served on the EAC was as its Chair. The committee was structured to implement Chapter 4, Energy, of the Master Plan. He thinks communication could be better. It was not clear to him, as the Chair, what the expectation for communication was. Regarding questions about what the committee has done, he said the committee drafted the Solar (Renewable Energy) Ordinance, which took a lot of time. They met once a month. They have been working on the electric vehicle charging station plan, along with other things. He asked if the Council sunsets this committee, what the Council expects to do in regard to Chapter 4 of the Master Plan. Some recommendations are to hear what the expectations are from the Council (i.e. save energy for energy's sake, save the City money, or save tax payers money). An initiative was to partner with NH Saves to do Button Up Workshops.

There was a discussion about communication between the committee and Council. Regarding the City Council Representative seat on the EAC, Councilor Beliveau said he would like to be on that committee. Mr. MacLean asked if this discussion includes the Electric Aggregation Committee. Mr. Ferland said that it is a subcommittee of the EAC. This was started in 2018. The Council authorized the creation of the subcommittee in 2020.

Councilor Koloski would like this to come back to the Council with a recommendation from the City Manager whether or not it is prudent to maintain the Aggregation Committee.

Mr. MacLean will work with Ms. Merrill, and maybe Mr. Ferland on the Aggregation Committee. He was intrigued by Francis Gauthier's comments at the last meeting, so he would like to meet with him and Ms. Merrill and then come back with a report to the Council. Mr. Ferland said he would be available to share information from the past three years; he is a former EAC member. There are different ways to join an aggregation pool. No matter which way you choose, there will be a cost for the services and that will "eat into" the savings. There are costs for distribution and for consumption. You will only save money on the consumption side. You need to know what the objectives are for the City of Claremont (save money, or go green).

Mayor Girard talked about the Aggregation Committee make up and that it may need to be changed. Mr. Ferland said when Keene formed their committee, they had a dozen people. There is quite a bit of work involved which will take a lot of people to do.

Councilor Contois said a lot has been accomplished by the committee. The EAC, as laid out in the Master Plan, is the will of the people. There needs to be simplification between the EAC and the Aggregation Committee.

Mayor Girard said it sounds like Council is looking to keep the EAC, and Mr. MacLean will discuss the Aggregation Committee with Ms. Merrill.

Mr. MacLean said he is glad the Council is considering putting this on hold and allowing Staff to look into it. We can look at what other communities are doing. We'll try to look at the facts and then the Council can evaluate how it wants to go forward. He said it will take some time, and he will try to give an update in about a month.

Councilor Mooshian thanked Mr. Ferland, committee members, and anyone in the community that serves on City boards.

Regarding his original motion to disband the Energy Advisory Committee, Councilor Koloski rescinded his motion and Councilor O'Hearne rescinded his second.

Councilors agreed to wait to discuss applications for the Energy Advisory Committee and Electric Aggregation Committee until after hearing from Mr. MacLean.

FUTURE AGENDA ITEMS AND DIRECTIVES

Assistant Mayor Matteau said she would like to address a Council Rule change for #17 Voting, to go back to voice votes.

There was a discussion about who would give committee reports to the Council, and in what format. No decision was made.

Councilor Koloski would like to discuss having the Council write a welcome letter to new businesses that open in Claremont. He would like to see the Council be more proactive on this. Mr. MacLean said he thinks that is something the Mayor and the City Manager's office could do. He's been involved, in the past, where the Mayor and City Manager would go out to meet with businesses and industry located in the community and to show support to those businesses. It creates a really good relationship with local businesses.

Councilor Koloski expressed concern about the openings in the stairwell leading up to the Opera House. The openings are low enough and large enough that a child could climb around the area and could fall.

Councilor Koloski said the Council had voted to give former City Manager Ed Morris a timeline to come back to the Council regarding alternatives to the Transfer Station. Mr. MacLean said that Mr. Morris had told him about that and Mr. MacLean has started a conversation with the Public Works Director on how to create that report. Perhaps during the budget process would be a good time for that report in order for the Council to make some decisions.

CONSULTATION WITH LEGAL COUNSEL

None.

ADJOURNMENT

At 8:33 p.m., a motion was made by Assistant Mayor Matteau and seconded by Councilor Beliveau to adjourn.

Roll call vote:

Contois - yes

O’Hearne - yes

Stone - yes

Matteau - yes

Koloski - yes

Limoges - yes

Beliveau - yes

Mooshian - yes

Girard - yes

Motion carried 9-0.

Respectfully Submitted,

Dorée M. Russell
Clerk to the Council